

25PSCV04525 25PSCV04525

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-09-22

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Case Number: 25PSCV04525 Hearing Date: September 22, 2026 Dept: 6

CASE

NAME: David

Munoz, et al. v. Inland Valley Partners LLC dba Inland Valley Care and Rehabilitation Center, et al.

Defendant

Matthew E. Potts, M.D.'s Demurrer to Plaintiffs' First Amended Complaint

TENTATIVE

RULING

The Court OVERRULES Defendant Matthew E. Potts, M.D.'s Demurrer to Plaintiffs' First Amended Complaint. Defendant Potts must file and serve an Answer to the First Amended Complaint within ten calendar days of this order.

Plaintiffs are ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a wrongful death/medical malpractice case. On December 17, 2025, plaintiffs David Munoz, individually and as Successor In Interest to Rickie Munoz, Decedent, Monica Munoz, Adrian Rickie Munoz, and Isaac Dunn (collectively, Plaintiffs) filed this action. On April 14, 2026, Plaintiffs filed the operative First Amended Complaint (FAC) against defendants Inland Valley Partners LLC dba Inland Valley Care and Rehabilitation Center (Inland Valley), San Antonio Regional Hospital (San Antonio), and Does 1-25, alleging causes of action for survivor action and wrongful death. On May 20, 2026, Plaintiff filed

a Doe amendment substituting Timothy Yo Wu, MD (Wu) in place of Doe 1. On June 23, 2026, Plaintiff filed a Doe amendment substituting Matthew Potts, MD (Potts) in place of Doe 2. All defendants may be collectively referred to hereinafter as "Defendants."

On August 20, 2026, Defendant Potts demurred to the FAC. On August 26, 2026, Plaintiffs opposed the demurrer. On September 15, 2026, Potts replied to Plaintiff's opposition.

LEGAL STANDARD

A demurrer is a pleading used to test the legal sufficiency of other pleadings. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading (complaint, answer or cross-complaint). (Code Civ. Proc., § 422.10; see *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994 (*Donabedian*).) It is not the function of the demurrer to challenge the truthfulness of the complaint; and for purposes of ruling on the demurrer, all facts pleaded in the complaint are assumed to be true. (*Id.* at pp. 993-994.)

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demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian*, *supra*, 116 Cal.App.4th at p. 994.) No other extrinsic evidence can be considered. (*Ion Equip. Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881 [error for court to consider facts asserted in memorandum supporting demurrer]; see also *Afuso v. United States Fid. & Guar. Co.* (1985) 169 Cal.App.3d 859, 862, disapproved on other grounds in *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 [error to consider contents of release not part of court record].)

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demurrer can be utilized where the "face of the complaint" itself is incomplete or discloses some defense that would bar recovery. (*Guardian North Bay, Inc. v. Superior Court* (2001) 94 Cal.App.4th 963, 971-972.) The "face of the complaint" includes material contained in attached exhibits that are incorporated by reference into the complaint, or in a superseded complaint in the same action. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94; see also *Barnett v. Fireman's*

Fund Ins. Co. (2001) 90 Cal.App.4th 500, 505 [“[W]e rely on and accept as true the contents of the exhibits and treat as surplusage the pleader’s allegations as to the legal effect of the exhibits”].)

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demurrer can only be sustained when it disposes of an entire pleading, cause of action, or affirmative defense. (See Cal. Rules of Court, rule 3.1320, subd. (a); Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119; Kong v. City of Hawaiian Gardens Redev. Agency (2003) 108 Cal.App.4th 1028, 1046-1047.)

REQUESTS FOR JUDICIAL NOTICE

The Court GRANTS

Defendant Potts’ request for judicial notice. (Evid. Code, § 452, subd. (d).) However, the Court takes judicial notice only as to “the existence, content and authenticity of public records and other specified documents” and the legal effect of the documents’ language when that effect is clear, it does not take judicial notice of the truth of the factual matters asserted in those documents. (Dominguez v. Bonta (2022) 87 Cal.App.5th 389, 400; Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 265.)

DISCUSSION

Meet and Confer

The Court finds Defendant Potts’ efforts to meet and confer before bringing this demurrer sufficient. (Code Civ. Proc., § 430.41, subd. (a); Siegel Decl., ¶¶ 2-3.)

Statute of Limitations

For the statute of limitations to bar a cause of action at the pleading stage, the defects must “clearly and affirmatively appear on the face of the complaint...” (Stueve Bros. Farms, LLC v. Berger Kahn (2013) 222 Cal.App.4th 303, 321.) “In an action for injury or death against a health care provider based upon such person’s alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first.” (Code Civ. Proc.,

§ 340.5.)

Defendant Potts demurs to both causes of action on the grounds that they are time-barred. Potts contends that the claims against him are barred by the statute of limitations in Code of Civil Procedure section 340.5 because the June 23, 2026 Doe Amendment does not relate back to the December 17, 2025 original Complaint. Potts argues that Plaintiffs cannot establish the genuine ignorance required by section 474 because their own FAC, filed April 14, 2026, identified him by name and set out a detailed, expert-supported medication-negligence theory more than two months before he was substituted into the case. Potts further argues that the FAC advances a new and distinct theory — affirmative over-prescription of oral diabetic medications causing hypoglycemia — that does not arise from the same general set of facts as the original Complaint's insulin-omission theory, defeating relation back. Because the alleged negligence occurred in February 2023 and he was not named until June 2026, he contends both causes of action are time-barred.

In opposition, Plaintiffs respond that section 474 ignorance is not limited to a defendant's name but extends to ignorance of facts that would cause a reasonable person to believe the defendant must be sued individually, and that they reasonably relied on Defendant San Antonio's presumptive ostensible-agency liability for its emergency physician until the hospital disputed that agency in June 2026. Plaintiffs contend they named Potts within three days of learning the hospital would contest vicarious liability, expressly to preserve recovery and not as a concession on agency, and that whether they were genuinely ignorant is a question of fact that cannot be resolved on demurrer. They argue the amendment relates back because it rests on the same hospitalization, the same diabetic mismanagement, and the same injury and death, and that a change in legal theory or clinical mechanism does not defeat relation back. Plaintiffs further argue that the wrongful death cause of action is independently timely because its limitations period runs from the date of death, and that any discovery-date question is factual and unsuited to demurrer.

In reply, Potts argues that Plaintiffs identify no new fact about his own conduct learned after April 14, 2026, and that the only intervening development — the hospital's litigation position on agency — is a fact about the hospital, not about him. Potts contends that section 474 protects ignorance of a defendant's own connection to the injury, not a plaintiff's tactical decision to hold a fully investigated physician in reserve while negotiating

vicarious liability with a codefendant, and that his direct liability never depended on the hospital's agency status. Potts argues that Plaintiffs' own judicial admissions establish a considered litigation strategy rather than genuine ignorance, resolving the issue as a matter of law, and distinguishes Plaintiffs' authorities. On the wrongful death claim, he argues section 340.5 is a dual-prong statute in which the one-year discovery period controls whenever it is satisfied first, and that because Plaintiffs pleaded no facts of delayed discovery, that period presumptively ran from the March 4, 2025 death and expired before the June 23, 2026 amendment. Potts maintains that any independent timeliness of the wrongful death claim would not cure the failure to satisfy section 474.

The Court finds the FAC does not allege sufficient facts on its face showing that Plaintiffs' claims are time-barred. "The general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed. A recognized exception to the general rule is the substitution under [Code of Civil Procedure] section 474 of a new defendant for a fictitious Doe defendant named in the original complaint as to whom a cause of action was stated in the original complaint. If the requirements of section 474 are satisfied, the amended complaint substituting a new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed. (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176 [internal citations omitted].) Here, Plaintiffs substituted Potts into the case in place of Defendant Doe 2 on June 23, 2026. Thus, if the requirements of section 474 are met, the amendment is deemed filed as of the date the original complaint was filed, known as the relation back doctrine.

Relation back requires that: (1) the original complaint stated a claim against the fictitiously named defendant; (2) the plaintiff was genuinely ignorant within the meaning of Code of Civil Procedure section 474; and (3) the amended pleading is based on the same general set of facts. (See *Gen. Motors Corp. v. Superior Ct.* (1996) 48 Cal.App.4th 580, 595, fn. 14.) Genuine ignorance under Code of Civil Procedure section 474 is measured by what Plaintiffs actually knew when they filed the original Complaint, not the FAC that Potts incorrectly focuses on. (*Id.* at pp. 594-595; Code Civ. Proc., § 474; *Munoz v. Purdy* (1979) 91 Cal.App.3d 942, 947 ["Section 474, however, does not relate to the steps which should be taken after the filing of

the action; it is restricted to the knowledge of the plaintiff at the time of filing of the complaint.”].) As such, the FAC’s allegations developed through subsequent discovery and expert consultation do not defeat application of the relation back doctrine. (See FAC, ¶ 18; Opp., 10:20-25.) The Complaint otherwise does not allege facts that clearly show Plaintiffs knew of Potts’ identity and responsibility in this matter when they filed the original Complaint. (See generally Compl.; *McOwen v. Grossman* (2007) 153 Cal.App.4th 937, 944.)

Moreover, the original Complaint names 25 Doe Defendants in the caption and alleges all causes of action against all the Defendants. (See generally Compl.) The FAC’s allegations are also based on the same general set of facts, namely the alleged medical treatment the Decedent received from Defendants in February 2023 that led to hypoglycemic brain injury and ultimately to his death in March 2025. (See Compl., ¶¶ 12-16; FAC, ¶¶ 12-31.) The fact the theory changed from the alleged failure to provide insulin to the alleged provision of a different improper medication does not defeat relation back. (*Smeltzley v. Nicholson Mfg. Co.* (1977) 18 Cal.3d 932, 940 [“it has long been held that a change in legal theory will not prevent an amendment from relating back. [Citation.]”].)

As for Potts’ strategic-reliance argument regarding Plaintiffs’ decision to initially pursue only Defendant San Antonio before bringing Potts into this action, that argument fails at this time because it depends on facts not conclusively established by the pleadings and judicially noticeable matters. *Miller v. Thomas* (1981) 121 Cal.App.3d 440 turned on an admission that the plaintiff knew the omitted defendant’s identity and responsibility at the time the original complaint was filed. (*Id.* at pp. 445-446.) Here, the pleadings do not clearly show Plaintiffs actually knew of the facts of Potts’ connection to the Decedent’s injury when they filed the original Complaint, and therefore cannot be resolved on demurrer. (See *M.F. v. Pac. Pearl Hotel Mgmt. LLC* (2017) 16 Cal.App.5th 693, 703 [questions of fact generally not suitable for demurrer].)

Finally, with respect to the parties’ arguments concerning the one-year limit for Plaintiffs’ wrongful death claim, the Court finds that Plaintiffs’ claim relates back for the same reasons noted above and therefore survives the one-year post-death limit. Plaintiffs filed the original Complaint in December 2025, which was within one year of the Decedent’s death in March 2025, so Plaintiffs’ wrongful death claim against Potts relates back to the original Complaint.

Based on the foregoing, the Court OVERRULES the demurrer to the First and Second Causes of Action.

CONCLUSION

The Court OVERRULES Defendant Matthew E. Potts, M.D.'s Demurrer to Plaintiffs' First Amended Complaint. Defendant Potts must file and serve an Answer to the First Amended Complaint within ten calendar days of this order.

Plaintiffs are ordered to give notice of the Court's ruling within five calendar days of this order.